

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201504054	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 11/12/2014 3:25 PM	Location of Incident: SW Corner of Atlantic Avenue and 115th Street and 102nd Precinct Stationhouse	18 Mo. SOL 5/12/2016	Precinct: 102
Date/Time CV Reported Wed, 05/20/2015 2:55 PM	CV Reported At: Other	How CV Reported: In-person	Date/Time Received at CCRB Wed, 05/20/2015 2:55 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Neil Conde	06620	943100	102 PCT
2. DT3 Vernon Truitt	03644	935880	NARCBQN
3. SGT David Oconnell	03337	916345	NARCBQN
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Richard Nathaniel	25415	933084	NARCBQN

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: Officers pointed their guns at § 87(2)(b)	A . Alleged Victim Uncooperative
B . DT3 Vernon Truitt	Abuse: Det. Vernon Truitt strip-searched § 87(2)(b)	B . Unsubstantiated
C . SGT David Oconnell	Discourtesy: At Atlantic Avenue and 115th Street and the 102nd Precinct stationhouse, SGT David Oconnell spoke rudely to § 87(2)(b)	C . Unsubstantiated
D . POM Neil Conde	Discourtesy: At Atlantic Avenue and 115th Street and the 102nd Precinct stationhouse, PO Neil Conde spoke rudely to § 87(2)(b)	D . Unfounded
E . SGT David Oconnell	Abuse: At the 102nd Precinct stationhouse, SGT David Oconnell threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
F . POM Neil Conde	Abuse: At the 102nd Precinct stationhouse, PO Neil Conde threatened § 87(2)(b) with the use of force.	F . Unfounded

§ 87(2)(b) filed this complaint in person on May 20, 2015 at Rikers Island Detention Facility. § 87(2)(b), § 87(2)(g)

- Sgt. OConnell has been a member of the service for 20 years and has twelve previous allegations involving eight cases. Sgt. OConnell has one prior allegation for discourtesy in which the complainant was uncooperative (Board Review 09).
- PO Conde has been a member of the service for eight years and has 10 previous allegations involving eight cases. PO Conde has three prior allegations of discourtesy which were unsubstantiated. PO Conde also has allegations in open CCRB Case #201504067 (Board Review 10).

Findings and Recommendations

Explanation of Subject Officer Identification

- PO Conde was identified as a subject officer by name by § 87(2)(b) during his interview (Board Review 11). § 87(2)(b) claimed that he knew PO Conde because he is known in his neighborhood by his friends as an officer who abuses his power. § 87(2)(b) has a prior arrest on November 11, 2014 in which PO Conde was his arresting officer (Board Review 11). § 87(2)(b) described PO Conde as a white Italian male, standing 5'7" tall, 33 to 34 years old, with an athletic build, and blonde hair. On his interview report, PO Conde described himself as a § 87(2)(b) old white male, standing 5'8" tall, weighing 200 pounds, with black hair and brown eyes.

Allegation A – Force: Officers pointed their guns at § 87(2)(b)

Allegation B – Abuse of Authority: Det. Vernon Truitt strip-searched § 87(2)(b)

Allegation C – Discourtesy: At Atlantic Avenue and 115th Street and the 102nd Precinct stationhouse, SGT David OConnell spoke rudely to § 87(2)(b)

Allegation D – Discourtesy: At Atlantic Avenue and 115th Street and the 102nd Precinct stationhouse, PO Neil Conde spoke rudely to § 87(2)(b)

Allegation E – Abuse of Authority: At the 102nd Precinct stationhouse, SGT David OConnell threatened § 87(2)(b) with the use of force.

Allegation F – Abuse of Authority: At the 102nd Precinct stationhouse, PO Neil Conde threatened § 87(2)(b) with the use of force.

During his interview, § 87(2)(b) stated he was by himself walking northbound on 115th Street in Queens toward Atlantic Avenue (Board Review 11). § 87(2)(b) had been visiting friends in the neighborhood. § 87(2)(b) stopped for about three seconds to ask § 87(2)(b) for the time. § 87(2)(b) was seated in her parked car. § 87(2)(b) stated that he does not know § 87(2)(b) personally but has seen her in the area. § 87(2)(b) continued walking along 115th Street. § 87(2)(b) drove away and was stopped by an unmarked police van at the intersection of 115th Street and Atlantic Avenue. § 87(2)(b) saw Det. Truitt reach into § 87(2)(b)'s bra but did not know if anything was found. After § 87(2)(b) was stopped, plainclothes officers approached § 87(2)(b) and placed him under arrest. § 87(2)(b) was questioning the officers about why he was being placed under arrest. During this conversation, Sgt. OConnell and PO Conde allegedly told § 87(2)(b) to "Shut the fuck up" and that they were "going to do what the fuck we want." § 87(2)(b) stated that he knew PO Conde and Sgt. OConnell from previous arrests. § 87(2)(b) felt that Sgt. OConnell "always threw his superiority in his face." PO Conde is known in the neighborhood for "abusing his power." § 87(2)(b) and § 87(2)(b) were transferred to the 102nd Precinct stationhouse. At the stationhouse, § 87(2)(b) alleged that he was brought to a small room by Sgt. OConnell and PO Conde. In the room, Sgt. OConnell and

PO Conde allegedly threatened him with the use of force. Sgt. OConnell and PO Conde both said, “Yo, if you don’t tell us anything, we’re going to beat you up” and “Yo, we’re going to beat you the fuck up if you don’t tell us what you fucking know.”

§ 87(2)(b) made an allegation on behalf of § 87(2)(b). A sworn statement was not obtained from § 87(2)(b) during this investigation. § 87(2)(b) was called five times and five messages were left. Two letters were mailed to § 87(2)(b) and neither were returned by the USPS. On January 19, 2015, a phone statement from § 87(2)(b) was obtained by Inv. Fornelli for related CCRB case #§ 87(2)(b) (Board Review 13). In this statement, § 87(2)(b) stated that she is friends with § 87(2)(b) and was in the neighborhood to speak with him. § 87(2)(b) found § 87(2)(b) and spoke with him inside her car for approximately ten minutes. § 87(2)(b) started to drive away and was stopped by police officers in an unmarked van. Officers approached her vehicle with their guns drawn and pointed at her. § 87(2)(b) was asked to get out of her vehicle, handcuffed, and questioned about what she had on her. An unidentified officer then reached into § 87(2)(b)’s bra and pulled aspirin and painkillers out of her bra. § 87(2)(b) then saw officers arrest § 87(2)(b).

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) The narcotics team drove to the scene and stopped § 87(2)(b) who was driving away. Det. Truitt recovered narcotics from § 87(2)(b) but PO Nathaniel did not witness any search of § 87(2)(b) occur at the incident location. A few minutes after § 87(2)(b) was stopped, PO Nathaniel saw § 87(2)(b) down the street. PO Nathaniel did not have any interaction with § 87(2)(b) at the incident location. PO Nathaniel was not sure which officers approached § 87(2)(b). PO Nathaniel did not witness any interactions that occurred with § 87(2)(b) at the incident location. PO Nathaniel was not familiar with PO Conde. PO Nathaniel stated that there were no officers from the 102nd Precinct at the incident location. § 87(2)(b) and § 87(2)(b) were brought to the prisoner van and transported to the 102nd Precinct stationhouse after Sgt. OConnell called in the arrest. PO Nathaniel did not have any interaction with § 87(2)(b) at the stationhouse. Prisoners may be debriefed at the stationhouse but PO Nathaniel was not involved in debriefing § 87(2)(b) or § 87(2)(b). No officer from the 102nd Precinct would have had any involvement in the arrest processing or debriefing of § 87(2)(b) at the stationhouse.

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) The narcotics team drove to the incident location and stopped the woman’s vehicle which was driving away. Det. Truitt approached § 87(2)(b) asked for her credentials, and asked if she had anything on her. § 87(2)(b) stated that she had heroin in her bra. § 87(2)(b) pulled the heroin out of her bra and handed it to Det. Truitt. Det. Truitt noted this aspect of the interaction in his memo book (Board Review 16). Det. Truitt never reached into § 87(2)(b)’s bra or any of her undergarments to recover narcotics. § 87(2)(b) was placed under arrest. § 87(2)(b)

§ 87(2)(e)

§ 87(2)(b) Det. Truitt approached § 87(2)(b) by himself and placed him under arrest. PO Nathaniel was standing 10-15 feet away while § 87(2)(b) was handcuffed. § 87(2)(b) was compliant and did not argue with Det. Truitt or struggle in any way. Det. Truitt did not curse at § 87(2)(b) and did not hear any officer curse at § 87(2)(b). § 87(2)(b) was transferred to the 102nd Precinct stationhouse. Det. Truitt completed the arrest processing paperwork for § 87(2)(b) and § 87(2)(b). Det. Truitt did not have any interaction with § 87(2)(b) at the stationhouse. Det. Truitt stated that prisoners are usually debriefed at the

stationhouse. However, he could not recall if § 87(2)(b) was debriefed on the incident date. Det. Truitt was not involved in any debriefing of § 87(2)(b) at the stationhouse. Det. Truitt never threatened § 87(2)(b) with the use of force and never heard any officer threaten § 87(2)(b) with the use of force. Det. Truitt was not familiar with PO Conde. Det. Truitt stated that no officers from the 102nd Precinct were involved at the incident location or would have had any involvement in § 87(2)(b) arrest processing at the stationhouse.

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. OConnell and Det. Truitt drove to the incident location and stopped a woman driving away from the location in a truck. Heroin was recovered from § 87(2)(b) Sgt. OConnell did not conduct a search of § 87(2)(b) and did not remember a search of § 87(2)(b) occurring at the incident location. Sgt. OConnell did not see any officer reach into § 87(2)(b)'s bra during this interaction. § 87(2)(b) was placed under arrest. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. OConnell and Det. Truitt approached § 87(2)(b) At the time § 87(2)(b) and § 87(2)(b) were arrested, Sgt. OConnell only remembered himself and Det. Truitt being on the scene. Sgt. OConnell informed § 87(2)(b) that he was under arrest. § 87(2)(b) asked why he was being arrested but was not argumentative with the officers and was compliant while he was being handcuffed. Sgt. OConnell never cursed at § 87(2)(b) and never heard another officer curse at § 87(2)(b) during this incident. Other officers from the narcotics team may have arrived after § 87(2)(b) and § 87(2)(b) were arrested but he could not remember who they were. Sgt. OConnell is familiar with PO Conde but stated that he was not at the incident location. § 87(2)(b) and § 87(2)(b) were transported to the 102nd Precinct stationhouse in a prisoner van. Sgt. OConnell thought he might have interacted with § 87(2)(b) at the stationhouse but could not remember anything that was said. Sgt. OConnell did not remember anything out of the ordinary about his interaction with § 87(2)(b) at the stationhouse. Sgt. OConnell did not remember if he debriefed § 87(2)(b) at the stationhouse or if § 87(2)(b) was debriefed at all. Sgt. OConnell never threatened § 87(2)(b) with the use of force at the stationhouse. Officers from the 102nd precinct would not have been involved in any aspect of § 87(2)(b) arrest processing or debriefing at the stationhouse.

PO Conde testified that he had no involvement with § 87(2)(b) on the incident date (Board Review 18). PO Conde was shown a photo of § 87(2)(b) PO Conde thought the photo looked familiar from a prior arrest. The incident was described to PO Conde and it was not familiar to him. PO Conde was assigned to conditions in the 102nd Precinct on the incident date and would have been on patrol. PO Conde had no memo book entries near the incident time and could not describe more specifically what he was doing at the time (Board Review 19). PO Conde has never worked with members of the narcotics team on any police action. PO Conde never cursed at § 87(2)(b) on the incident date. PO Conde never threatened § 87(2)(b) with the use of force on the incident date. PO Conde was working with PO Cortright on the incident date. PO Cortright's memo book shows that he conducted an arrest two blocks away at 116th Street and 101st Avenue approximately thirty minutes before § 87(2)(b) was arrested (Board Review 20).

Patrol Guide Procedure 203-09 states that officers must be "courteous and respectful" in their conduct with the public (Board Review 21).

Patrol Guide Procedure 208-05 states that a strip search may only be conducted with the approval of the arresting officer's supervisor and only if weapons, contraband or evidence is reasonably suspected to be concealed in a way that may not be detected by other search methods

(Board Review 22). A strip search may only be conducted by a member of the same gender as the arrested person.

During a phone statement provided for a related case, § 87(2)(b) stated that officers approached her vehicle with their guns drawn and pointed at her (Board Review 13). As discussed above, § 87(2)(b) could not be reached to provide an in-person statement about this incident. § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Victim Uncooperative**.

§ 87(2)(b) alleged that Det. Truitt reached into § 87(2)(b)'s bra at the incident location. PO Nathaniel and Sgt. OConnell testified that they did not see any officer reach into § 87(2)(b)'s bra. PO Nathaniel and SGT OConnell did not witness any search of § 87(2)(b) at the incident location. Det. Truitt testified that § 87(2)(b) acknowledged she had drugs hidden in her bra, reached into her bra herself, and handed him the heroin. § 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

§ 87(2)(g)

it is recommended that **Allegation C and Allegation E** be closed as **unsubstantiated**.

PO Conde testified that he had no involvement with § 87(2)(b) at the incident location or at the 102nd Precinct stationhouse on the incident date. PO Conde testified that he has never been assigned to work with a borough narcotics team, even on a temporary basis. The 102nd Precinct Roll Call on the incident date confirms that PO Conde was assigned to conditions in the 102nd Precinct (Board Review 23). Sgt. OConnell, Det. Truitt, and PO Nathaniel all testified that PO Conde was not involved at the incident location or at the stationhouse. Sgt. OConnell, Det. Truitt, and PO Nathaniel all testified that no officer from the 102nd Precinct was involved at the incident location and that no officer from the 102nd Precinct would have participated in any aspect of § 87(2)(b) arrest processing at the stationhouse. § 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation D** and **Allegation F** be closed as **unfounded**.

Pod: 8

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date